GEN 1.2 ENTRY, TRANSIT AND DEPARTURE OF AIRCRAFT

1. General

1.1 International flights into, from or over Nepalese territory shall be subject to the current Nepalese regulations relating to civil aviation. These regulations correspond in all essentials to the Standards and Recommended Practices contained in Annex 9 to the Convention on International Civil Aviation.

1.2 Aircraft flying into or departing from the territory of Nepal shall make their first landing at, or final departure from International Aerodromes.

2. Scheduled Flights

2.1. ***General***

2.1.1. For regular international scheduled flights operated by foreign airlines into or in transit across Nepal, the following requirements must be met:

a) The State of the airline must be a party to the International Air Services Transit Agreement and/or the International Air Transport Agreement. Nepal is party to International Air Services Transit Agreement only.
b) The airline must be eligible to make the flights under the provisions of a bilateral or multilateral agreement to which the State of the airline and Nepal are contracting parties and must have a permit to operate into or in transit across Nepal. Applications for such permits shall be submitted to the Director General of Civil Aviation Authority at least 60 working days before the applicable date.
c) For the amendments of schedule or revision of the scheduled flight, the request for amendment/ revision shall be submitted at least 7 working days before the applicable date .

2.2. ***List of Required Documents for operation in Nepal by foreign carriers/operators:***

a) Letter forwarded by the Ministry responsible for Civil Aviation in concerned country, designating the airlines as the Designated Airline of that country (with conformation of Operating Authorization), to the Government of Nepal, Ministry of Culture, Tourism and Civil Aviation (As per the provision made under Air Service Agreement (ASA) and Memorandum of Understanding (MOU) between Nepal and the concerned country, through the Ministry of Foreign Affairs of Nepal i.e. Diplomatic Channel.
b) A copy of Legal Document that reflects the Substantial Ownership and Effective Control.
c) Security Manual.
d) Operation Manual
e) Standard Operating Procedures (SOPs).
f) A copy of Air Operator Certificate.
g) A copy of Certificate of Registration of each aircraft involved in operation.
h) A copy of Certificate of Airworthiness of each aircraft involved in operation.
i) A copy of Certificate of Insurance covering Third Party Liability of amount not less than US $ 60 Million.

j) A copy of Simulator Certificate of PIC for Kathmandu Airport, of SID/SIA Procedures, Maps etc.
k) A copy of Certificate of Insurance ensuring at least Coverage in accordance with the Warsaw Convention, 1929 and amended by the Hague Protocol 1955.
l) A copy of English Language Proficiency Certificate of PIC if, non-native English Speaker.
m) Proposed Route Schedule, Frequency, Capacity, Traffic Rights and Tariffs approved by the Responsible Authority of the Concerned Country.
n) SLOT approval letter from International Airport.
o) Removal of disabled aircraft plant occupied by International Airport.
p) A copy of Ground Handling Arrangement and/or Agreement Letter.
q) Name and Address of the Local Agent/Representative and Authorization Letter.

2.3. ***Documentary requirements for clearance of aircraft***

2.3.1. It is necessary that the under mentioned aircraft documents be submitted by airline operators for clearance on entry and departure of their aircraft to and from Nepal. All documents listed below must follow the ICAO standard format as set forth in the relevant appendices to Annex 9 and are acceptable when furnished in English and completed in legible handwriting. No visas are required in connection with such documents.

2.3.2. Aircraft documents required (arrival/departure)

Required by	General Declaration	Passenger Manifest	Cargo Manifest
Customs office	1 Copy	1 Copy	1 Copy
Immigration office	1 Copy	1 Copy	------
Airport Office	1 Copy	1 Copy	1 Copy

Note.– a) One copy of the General Declaration is endorsed and returned by customs, signifying clearance.

b)

Declaration need be submitted to the above authorities.

3. Non-Scheduled Flights

3.1. ***Procedures***

3.1.1. *Over flights*

a) Advance notification and permission from Civil Aviation Authority of Nepal is required for civil aircraft of ICAO contracting states to cross or overfly the Kathmandu FIR (VNSM) subject to the terms of the convention on International Civil Aviation. Nepal facilitates over flights by civil aircraft of ICAO contracting states provided adequate notification shall have been given.
b) In all other cases, request for operation of flight must be sought and obtained through diplomatic means from the Ministry of Foreign Affairs, Nepal.
c) The same documents and overfly permission fee are applicable as mentioned in charter flight permission Para 3.1.3 (c).

3.1.2. *Non-Traffic or Technical Landings*

Same procedure as for over flights, in addition, operators should schedule their arrivals and departures within the operation hour of the aerodrome, beyond which prior co-ordination is required.

3.1.3. *Traffic Landings and Uplifts*

a) All non-scheduled flights are subject to prior approval, Applications for approval to operate such flights shall be submitted either by letter or AFTN or Facsimile to

Director General
Civil Aviation Authority of Nepal
Babar Mahal, Kathmandu, Nepal
AFS : VNKTYAYX
Tel: 977-1- 4262387, 4262518, 4262326
Fax : 977-1- 4262516
E-mail: dgca@caanepal.gov.np

All applications must be made in writing and must reach the Director General, Civil Aviation Authority of Nepal at least 15 working days prior to the aircraft's arrival or departure into or from Nepal. If insufficient notice is given the application may not be considered.

b) Only the operator may apply for permission to operate a non- scheduled flight. The permit will be granted in the name of the operator.
c) Charter Flight Permission: The procedure for getting permission to Kathmandu, is to write an application letter from the operator to the Director General of Civil Aviation Authority of Nepal (CAAN) requesting over-flying and landing permission, in well before the proposed date of operation (at least 7 days before), through local agent located at Kathmandu. The application letter shall enclose following documents.

    1) A copy of Air Operator Certificate (AOC)
    2) A copy of Certificate of Registration of Aircraft (C of R)
    3) A copy of Certificate of Airworthiness of Aircraft (C of A)
    4) A copy of Aircraft Flight Manual (AFM) that shows the Maximum take-off weight of Aircraft (MTOW).
    5) A copy of Certificate of Insurance of Aircraft covering Third Party Liability of not less than US$ 60 million ($60,000,000).
    6) A copy of Simulator Certificate of PIC for SID/SIA of TIA (Kathmandu).
    7) A copy of English Language Proficiency Certificate of PIC if, non-native English Speaker.
    8) A Charter Flight Permission Request Form, with all required information Filled Out.
    9) An authorization letter to local agent by the operator.
    10) A bank voucher of permission fee of $56.50, in equivalent Nepalese Currency (converted according to the Nepal Rastra Bank's selling rate of the date) deposited in Rastriya Banijya Bank, Bishal Bazar (New Road), Kathmandu, in the name of Civil Aviation Authority of Nepal, the Current Account No. 109006491701.

    Detail information and charter flight permission request form can be obtained from CAAN, Head Office or can be downloaded from: *www.caanepal.gov.np*

d) The appropriate legislation dealing with the offence of unauthorized entry into and encroachment of FIR within the Nepal is contained in Civil Aviation Act (4th amendment 1996) Section '9a', Sub-section 1, Para (A) and (B). Any person who uses any aircraft in contravention of the above provisions shall be guilty of an offence and liable to imprisonment for a term of 1-3 years. As a result, if someone is dead inside the aircraft or the aircraft is destroyed, the offender along

with the accomplice shall be liable on conviction to life imprisonment with the confiscation of his property.

3.2. ***Definitions:***

Scheduled flight:-

A predetermined domestic and international flight, that is operated in regular basis in a schedule manner for the carriage of passenger, mail and cargo with approved airfare and subject to Civil Aviation Regulation 2002, rule number 56 (3) (a) and (b) excluding international charter and non-scheduled flights.

Non-Scheduled Flight: -

A flight for the carriage of passengers, mail or cargo by air for hire and reward on journeys other than scheduled.

Charter: -

A person, company or corporate body who charters the aircraft and whose name and address appear in the Aircraft Charter Agreement.

Operator: -

In relation to an aircraft, the person for the time being having the business management of that aircraft.

4. Private Flight

4.1. ***Advance notification of arrival***

4.1.1. Application for permission must be submitted to Director General, Civil Aviation Authority of Nepal at least 7 working days in advance of the applicable date.

4.2. ***Documentary requirements for clearance of aircraft.***

4.2.1. Same requirements as for Charter flights Permission.

5. Public Health Measures Applied to Aircraft

5.1. Public health measures are required to be carried out in respect of aircraft entering Nepal. See the page GEN 1.3-3 for details.